

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #06	CCRB Case #: 201802885	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/13/2017 11:05 AM	Location of Incident: 470 Vanderbilt Avenue	18 Mo. SOL 6/13/2019	Precinct: 120
Date/Time CV Reported Fri, 04/06/2018 5:15 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 04/06/2018 5:15 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Desiderato	13351	936473	120 PCT
2. DTS Steven Lopez	4354	943498	120 PCT
3. SGT Thomas Woods	05640	935987	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Thomas Woods	Abuse: Sergeant Thomas Woods stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . DTS Steven Lopez	Abuse: Detective Steven Lopez stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Frank Desiderato	Abuse: Police Officer Frank Desiderato stopped § 87(2)(b) and § 87(2)(b)	C . Exonerated
D . POM Frank Desiderato	Force: Police Officer Frank Desiderato pointed his gun at § 87(2)(b)	D . Exonerated
E . SGT Thomas Woods	Abuse: Sergeant Thomas Woods frisked § 87(2)(b)	E . Exonerated
F . DTS Steven Lopez	Abuse: Detective Steven Lopez frisked § 87(2)(b)	F . Exonerated
G . DTS Steven Lopez	Abuse: Detective Steven Lopez searched the vehicle in which § 87(2)(b) was an occupant.	G . Unsubstantiated
H . SGT Thomas Woods	Abuse: Sergeant Thomas Woods searched the vehicle in which § 87(2)(b) was an occupant.	H . Unsubstantiated
I . POM Frank Desiderato	Abuse: Police Officer Frank Desiderato searched the vehicle in which § 87(2)(b) was an occupant.	I . Unsubstantiated
J . SGT Thomas Woods	Abuse: Sergeant Thomas Woods searched § 87(2)(b)	J . Unsubstantiated

Case Summary

On April 6, 2018, § 87(2)(b) filed the following complaint in-person with the CCRB.

On December 13, 2017, at approximately 11:05 a.m., § 87(2)(b) and § 87(2)(b) drove in § 87(2)(b)'s vehicle to a gas station located at 470 Vanderbilt Avenue in Staten Island. Sgt. Thomas Woods of Intelligence Division and Det. Steven Lopez and PO Frank Desiderato of the 120th Precinct approached their vehicle and stopped § 87(2)(b) and § 87(2)(b) (**Allegations A, B and C: Abuse of Authority -Exonerated**). PO Desiderato allegedly pointed his gun at § 87(2)(b) (Allegation D: Force – Exonerated). § 87(2)(b) and § 87(2)(b) were handcuffed and frisked (Allegation E and F: Abuse of Authority – Exonerated). The vehicle was searched (Allegations G, H and I: Abuse of Authority – Unsubstantiated). § 87(2)(b) was allegedly searched (Allegation J: Abuse of Authority – Unsubstantiated). No arrest or summonses resulted and § 87(2)(b) and § 87(2)(b) were released. Stop, question and frisk reports were filled out for this incident.

There was a cell phone video which captured a portion of the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Thomas Woods stopped § 87(2)(b) and § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Steven Lopez stopped § 87(2)(b) and § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Frank Desiderato stopped § 87(2)(b) and § 87(2)(b)

Allegation (D) Force: Police Officer Frank Desiderato pointed his gun at § 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Thomas Woods frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Detective Steven Lopez frisked § 87(2)(b)

§ 87(2)(g)

It is undisputed that § 87(2)(b) and § 87(2)(b) were stopped and frisked. § 87(2)(g) was interviewed by the CCRB, but § 87(2)(b) could not be contacted.

§ 87(2)(b) stated (**Board Review 1**) that he and his friend § 87(2)(b) drove to 470 Vanderbilt Avenue in § 87(2)(b)'s vehicle, a dark silver 2002 Mitsubishi SUV, in order to get gas and add more air to the tires. As they drove past 514 Targee Street, a bodega located next door to the gas station, § 87(2)(b) saw four or five police vehicles stopped in front of the bodega and a large number of police officers gathered around the front of the store. § 87(2)(b) did not know at the time what had occurred, but later found out that two acquaintances of his were arrested at the store.

§ 87(2)(b) stopped his vehicle next to the air pumps at 470 Vanderbilt Avenue, which is within the line of sight of the officers in front of the bodega. § 87(2)(b) began pumping air into his

tires, which involved walking around his car, and bending down to the different tires and walking back and forth to the driver's seat. § 87(2)(b) saw one of the officers standing in front of the neighboring bodega point at him. Four or five police vehicles drove towards § 87(2)(b) and the vehicles surrounded his car. § 87(2)(b) was seated in the driver's seat with the door open. § 87(2)(b) alleged that PO Desiderato pointed a handgun at him while approaching the vehicle. § 87(2)(b) held his hands up with his palms out and told the officers he was there to pump his tires. § 87(2)(b) and § 87(2)(b) were both removed from the vehicle and handcuffed. § 87(2)(b)'s legs were frisked by an officer whom he could not describe. § 87(2)(b) did not know what happened with § 87(2)(b).

Sgt. Woods (**Board Review 2**), Det. Lopez (**Board Review 3**) and PO Desiderato (**Board Review 4**) stated that they were present at 514 Targee Street in response to a report of an individual with a gun. Sgt. Woods and Det. Lopez stated the individual had been placed under arrest, and during the course of the incident had thrown a gun onto the floor of a store. PO Desiderato did not recall whether the arrest had already taken place. Sgt. Woods and Det. Lopez stated that they were standing outside of the building awaiting the arrival of an evidence collection unit to recover the gun. Sgt. Woods, and Det. Lopez stated that they were standing in front of the store when two FDNY fire marshals approached them. According to Sgt. Woods, the fire marshal stated, "Those guys have a gun in their vehicle." According to Det. Lopez, the fire marshal stated, "That car over there. Those two kids just put a gun in it." PO Desiderato did not recall his location or what he was doing, but stated that two fire marshals in uniform approached the officers and stated, "That truck has a firearm in it." The FDNY was not involved in the arrest that had just taken place, and the officers did not know from where the FDNY personnel had come. Sgt. Woods and Det. Lopez stated that they did not believe there was any connection between the earlier arrest and § 87(2)(b) or § 87(2)(b). All of the officers stated that there was no question that § 87(2)(b)'s vehicle was the one the fire marshal was referring to. Sgt. Woods estimated the distance as approximately 20 feet away. Det. Lopez estimated the distance was approximately 150 feet and PO Desiderato estimated it was 50 feet. According to City Maps distance measurement tool, the distance from the front of 514 Targee Street to the air pumps at the gas station was approximately 150 feet. (**Board Review 5**) Det. Lopez stated that § 87(2)(b) and § 87(2)(b) were standing outside of the vehicle looking at the police officers. § 87(2)(b) and § 87(2)(b) then entered the vehicle as if preparing to leave. The three officers did not question the fire marshal further.

PO Desiderato and Det. Lopez entered their vehicle and drove to the gas station, stopping behind § 87(2)(b)'s vehicle. Sgt. Woods, Det. Lopez both stated they did not recall seeing any officer draw or point their firearms. PO Desiderato did not recall whether he drew or pointed his firearm, and stated that he has drawn his firearm in similar situations, so that the drawing of a firearm in such a situation would not be especially memorable to him. Det. Lopez stated that he approached the passenger side of § 87(2)(b)'s vehicle. Det. Lopez asked § 87(2)(b) to exit the front passenger seat and then handcuffed and frisked § 87(2)(b) for a weapon. Nothing was found during the frisk. Det. Lopez stated that Sgt. Woods and PO Desiderato approached the driver's side where § 87(2)(b) was located. Det. Lopez did not see § 87(2)(b) being frisked, but was told that a frisk was conducted on § 87(2)(b) and noted such in a Stop, Question and Frisk report (**Board Review 6**). Sgt. Woods believed that § 87(2)(b) was frisked, but did not recall the specifics of how it took place. PO Desiderato stated that he stood with § 87(2)(b) next to

his vehicle after § 87(2)(b) was handcuffed, but had no recollection of how § 87(2)(b) was approached and handcuffed. PO Desiderato denied conducting a frisk on § 87(2)(b)

§ 87(2)(b) provided a cell phone video recorded by an unidentified bystander he could only identify as § 87(2)(b). According to § 87(2)(b) the video began approximately three minutes after § 87(2)(b) and § 87(2)(b) had been stopped. The video did not show § 87(2)(b) or § 87(2)(b)'s conduct prior to the stop. The individual who recorded the video walked across the street at one point, but then walked back towards § 87(2)(b). Due to the movement of the camera, the incident was not captured in its entirety. The video showed Det. Lopez and PO Desiderato's vehicle stopped behind § 87(2)(b)'s vehicle, and no other police vehicles in the vicinity. The video showed Det. Lopez frisk § 87(2)(b)'s pockets while he was handcuffed and Det. Lopez searching inside the back seat of § 87(2)(b)'s vehicle. As the video ended officers removed § 87(2)(b)'s handcuffs, § 87(2)(b) yelled at the officers not to remove his handcuffs stating that the officers had to arrest him.

When a police officer has reasonable suspicion to believe that a person has committed, is committing or is about to commit a crime, he or she is authorized to conduct a forcible stop and detention of that person *People v. De Bour*, 40 NY2d 210 (1976) (**Board Review 7**). Reasonable suspicion can be supplied by an anonymous informant in a face-to-face interview with police. Such information is considered to be reliable since an experienced officer can assess the informant's trustworthiness from his appearance and demeanor. An officer facing such a situation, may draw their firearm and detain a defendant until it can be ascertained whether the defendant was carrying an illegal firearm *People v. Sledge* 225 A.D.2d 711 (1996) (**Board Review 8**). When an officer is justified in believing that a suspect is armed or committing a violent crime, the officer may frisk him for weapons. *People v. De Bour* 40 NY2d 210 (1976).

§ 87(2)(g)

Therefore, it is recommended that **Allegations, A, B, C, D, E, and F**, be closed as **Exonerated**.

Allegation (G) Abuse of Authority: Detective Steven Lopez searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (H) Abuse of Authority: Sergeant Thomas Woods searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (I) Abuse of Authority: Police Officer Frank Desiderato searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was searched.

§ 87(2)(b) stated that after he was frisked, three officers opened the doors to his vehicle and searched inside the front and back seats. § 87(2)(b) asked the officers what they were

searching for, and one of them replied that they were searching for a gun. Nothing was found during the search and § 87(2)(b) and § 87(2)(b) were then released.

Det. Lopez stated that when § 87(2)(b) lowered the front passenger window, Det. Lopez smelled an odor of burnt marijuana with no visible smoke. Det. Lopez stated that the odor of marijuana gave him probable cause to search the vehicle for marijuana in addition to his suspicion of a firearm. Neither Sgt. Woods nor PO Desiderato mentioned detecting the odor of marijuana. Sgt. Woods and PO Desiderato both stated they did not have good recollections of the incident. After he frisked § 87(2)(b) Det. Lopez began to search the front and back seat of § 87(2)(b)'s the vehicle, including the seats, floors, door pockets, center console and glove compartment. Det. Lopez stated that Sgt. Woods and PO Desiderato joined him in searching § 87(2)(b)'s vehicle. Sgt. Woods stated that he searched the vehicle, but did not recall the specifics of what he did. PO Desiderato did not recall whether a search of the vehicle took place at all.

A police officer acting on reasonable suspicion that criminality is afoot and on an articulable basis to fear for his own safety may intrude upon the person or personal effects of the suspect only to the extent that is actually necessary to protect himself from harm. Absent probable cause, it is unlawful for a police officer to search the interior of a car once the suspects have been removed and frisked without incident and the threat thereby eliminated. A limited exception is when there is an “actual and specific” danger to the officer’s safety, such as the existence of bullets or a bulletproof vest. *People v. Carvey* 89 N.Y.2d 707 (1997) (**Board Review 12**)

The odor of marijuana, with nothing more, can provide probable cause for officers to search a vehicle and its occupants. *People v. Chestnut* 43 A.D.2d 260 (1974)(**Board Review 13**)

§ 87(2)(g)
[REDACTED]

It is therefore recommended that **Allegations G, H and I** be closed as **Unsubstantiated**.

Allegation (J) Abuse of Authority: Sergeant Thomas Woods searched § 87(2)(b)

§ 87(2)(b) stated that after he was frisked, an officer he could not describe instructed him to remove his shoes. § 87(2)(b) kicked off his shoes while standing up. The cell phone video provided by § 87(2)(b) showed when he kicked off his shoes. The video was reviewed during § 87(2)(b)'s CCRB interview and he stated that he did so at the direction of the officer who was subsequently identified as Sgt. Woods.

The cell phone video (**Board Review 9**) showed that while § 87(2)(b) was in handcuffs, with Sgt. Woods, Det. Lopez and PO Desiderato standing around him, § 87(2)(b) stated, “I don’t have shit in my shoes.” While looking at Sgt. Woods, § 87(2)(b) began to kick off his shoes and stated, “I’m not trying to kick you. I don’t have shit in my shoes.” § 87(2)(b) continued to repeat, “I don’t have shit in my shoes” while kicking off his shoes. Det. Lopez picked up § 87(2)(b) s shoes and placed them back at his feet. § 87(2)(b) then stepped back into his shoes. Sgt. Woods, Det. Lopez and PO Desiderato could not be heard saying anything to § 87(2)(b). There was no obvious gestures made by any officer towards § 87(2)(b) s shoes.

The video of § 87(2)(b) removing his shoes was presented to all three officers during their CCRB interviews. Sgt. Woods did not recall whether § 87(2)(b) was questioned about his shoes, but claimed that § 87(2)(b) removed his shoes voluntarily and denied that § 87(2)(b) was instructed to remove his shoes. Det. Lopez and PO Desiderato did not recall whether any officer instructed § 87(2)(b) to remove his shoes.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED] it is recommended that **Allegation J** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to seven other CCRB complaints and has been named as a victim in 32 allegations (**Board Review 10**).
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]

- § 87(2)(b) [REDACTED]
- Sgt. Thomas Woods has been a member of service for 14 years and has been a subject in four CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- Det. Steven Lopez has been a member of service for 11 years and has been a subject in six CCRB complaints and 15 allegations, of which one was substantiated.
 - 201116562 involved a substantiated allegation of vehicle search against Det. Lopez. The Board recommended instructions and the NYPD imposed instructions.
- PO Frank Desiderato has been a member of service for 13 years and has been a subject in eight CCRB complaints and 25 allegations, of which one was substantiated.
 - 201308743 involved a substantiated allegation of force against inanimate object against PO Desiderato. The Board recommended charges. PO Desiderato was found not guilty and no penalty was imposed.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- According to the Office of the New York City Comptroller, there is no record of a Notice of claim being filed in regards to this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 6

Investigator:	_____ Signature	Inv. Simon Wang _____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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